

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RICKY JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. MICHAEL LECLAIR, Shield No. 23485,
Individually and in his Official Capacity, P.O. BRIAN BEEGAN, Shield
No. 20709, Individually and in his Official Capacity, and P.O.'S "JOHN
DOE" #1-5, Individually and in their Official Capacity (the name John
Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
February 5, 2014

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

1. Michael A. Cardozo
Corporation Counsel of the
City of New York
New York, NY 10007
2. P.O. Michael Leclair
Shield No. 23485
Housing PSA 6
2770 Fredrick Douglas Blvd.
New York, NY 10039
3. P.O. Brian Beegan
Shield No. 20709
Housing PSA 6
2770 Fredrick Douglas Blvd.
New York, NY 10039

Index No.:

Purchased:

SUMMONS

Jury Trial Demanded

Plaintiff designates New York
County as the place of trial.

The basis of venue is:
Plaintiffs' Residence

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RICKY JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MICHAEL LECLAIR,
Shield No. 23485, Individually and in his Official
Capacity, P.O. BRIAN BEEGAN, Shield No. 20709,
Individually and in his Official Capacity, and P.O.'S
"JOHN DOE" #1-5, Individually and in their Official
Capacity (the name John Doe being fictitious, as the true
names are presently unknown),

Defendants.

COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

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Plaintiff RICKY JOHNSON, by his attorneys, COHEN & FITCH LLP, complaining of
the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff RICKY JOHNSON is an African American male and has been at all relevant times a resident of New York County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants P.O. MICHAEL LECLAIR, P.O. BRIAN BEEGAN and P.O.s “JOHN DOE” #1-#5 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about July 3, 2012, at approximately 4:10 p.m. in the County, City, and State of New York, plaintiff RICKY JOHNSON was lawfully in the lobby of his apartment building located at 217 West 127th Street, New York, NY.

9. At the aforesaid time and place, defendant officers accosted plaintiff and searched him after witnessing plaintiff say hello to a friend.

10. Defendant officers placed plaintiff under arrest with his arms tightly behind his back.

11. At no time on July 3, 2012, did defendants possess probable cause to arrest plaintiff.

12. At no time on July 3, 2012, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

13. Thereafter, plaintiff was transported to a nearby police precinct and charged with Criminal Possession of a Controlled Substance.

14. At no time on July 3, 201, did defendant possess a controlled substance or behave unlawfully in any way.

15. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York District Attorney's Office.

16. Thereafter, defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants falsely stated that defendants observed defendant sell two (2) bags of crack cocaine to another individual.

17. As a result of his unlawful arrest, plaintiff RICKY JOHNSON spent approximately fifteen (15) hours in police custody and made approximately two (2) court appearances before he all charges against him were dismissed in their entirety on November 8, 2012.

18. As a result of the foregoing, plaintiff RICKY JOHNSON sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through 18" with the same force and effect as if fully set forth herein.

20. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

21. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

23. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

24. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “24” with the same force and effect as if fully set forth herein.

26. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

27. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "27" with the same force and effect as if fully set forth herein.

29. Defendants misrepresented and falsified evidence before the New York County District Attorney.

30. Defendants did not make a complete and full statement of facts to the District Attorney.

31. Defendants withheld exculpatory evidence from the District Attorney.

32. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

33. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

34. Defendants acted with malice in initiating criminal proceedings against plaintiff.

35. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

36. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

37. Defendants acted with malice in continuing criminal proceedings against plaintiff.

38. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

39. All charges against plaintiff were dismissed on November 8, 2012.

40. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "40" as if the same were more fully set forth at length herein.

42. Defendants created false evidence against plaintiff.

43. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office.

44. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

45. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

46. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

STATE CLAIMS

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "46" with the same force and effect as if fully set forth herein.

48. On or about November 26, 2012 and within ninety (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

49. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

50. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and a hearing took place on April 2, 2013.

51. This action was commenced on February 5, 2014, within one (1) year and ninety (90) days after the cause of action herein accrued.

52. Plaintiffs have complied with all conditions precedent to maintaining the instant action.

53. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF
MALICIOUS PROSECUTION

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “53” with the same force and effect as if fully set forth herein.

55. Defendants misrepresented and falsified evidence before the District Attorney.

56. Defendants did not make a complete and full statement of facts to the District Attorney.

57. Defendants withheld exculpatory evidence from the District Attorney.

58. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

59. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

60. Defendants acted with malice in initiating criminal proceedings against plaintiff.

61. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

62. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

63. Defendants acted with malice in continuing criminal proceedings against plaintiff.

64. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

65. Notwithstanding the perjurious and fraudulent conduct of defendants, plaintiff was acquitted of all charges on November 8, 2012.

66. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

WHEREFORE, plaintiffs respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and

proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
February 5, 2014

BY:_____/s_____
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115
jfitch@cohenfitch.com
gcohen@cohenfitch.com

ATTORNEY'S VERIFICATION

GERALD COHEN, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff RICKY JOHNSON in the within entitled action

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 February 5, 2014

_____/s_____
Gerald Cohen

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
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(the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

SUMMONS AND COMPLAINT

Attorneys for

COHEN & FITCH, LLP

Plaintiff
233 BROADWAY
SUITE 1800
NEW YORK, NEW YORK 10279
(212) 374-9115

To:

Signature (Rule 130-1.1a)

Attorneys(s) for

Service of a copy of the within

is hereby admitted

Dated:

.....
Attorneys(s) for

PLEASE TAKE NOTICE

☐ *that the within is a (certified) true copy of a*
NOTICE OF *entered in the office of the clerk of the within named Court on*
ENTRY

☐ *that an Order of which the within is a true copy will be presented for settlement to the Hon.*
NOTICE OF *one of the judges of the within name Court,*
SETTLEMENT at
on

Dated:

, at

M.

ATTORNEY FOR

COHEN & FITCH, LLP
Plaintiff
233 BROADWAY, SUITE 1800
NEW YORK, N.Y. 10279
(212) 374-9115